

23STCV22632 23STCV22632

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23STCV22632 Hearing Date: August 7, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV22632

BERNARD

ABAD vs SUPERIOR GROCERS, INC.

August

7, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S PETITION TO VACATE ARBITRATION AWARD.

RULING:

The Court denies the Petition.

Defendant to give notice.

I.

BACKGROUND

On September 19, 2023, BERNARD

ABAD (Plaintiff) filed a Complaint against SUPERIOR GROCERS, INC. (Defendant), alleging race, disability and age discrimination, and harassment and retaliation, while employed by Defendant.

On June 25, 2026, Plaintiff

filed the Petition to Vacate Arbitration Award, on grounds including that the Arbitrator exceeded authority by erroneously precluding Plaintiff's prosecuting FEHA claims on the merits.

Defendant opposes, based

on arguments that the Arbitrator ruled correctly and within authority.

On June 30, 2026,

Defendant filed a related Petition to Confirm Arbitration Award, pending for hearing on August 19, 2026.

II.

LEGAL STANDARD

" 'Generally, courts cannot review arbitration awards for errors of fact or law, even when those errors appear on the face of the award or cause substantial injustice to the parties.' " (Valencia v. Mendoza (2024) 103 Cal.App.5th 427, 440–441.) The only grounds for judicial review of an arbitration award are: "(a) the award was procured by corruption, fraud or other means; (b) there was corruption in the arbitrator; (c) the rights of the party were substantially prejudiced by misconduct of a neutral arbitrator; (d) the arbitrator exceeded ... powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted; (e) the rights of the party were substantially prejudiced by the refusal of the arbitrator to postpone the hearing; or (f) there was a disclosure or disqualification issue...." (Allstate Ins. Co. v. Superior Court (2006) 142 Cal.App.4th 356, 362-363 [citing, e.g., Code

Civ. Proc., § 1286.2); SWAB Financial v. E*Trade Securities (2007) 150 Cal.App.4th 1181, 1201.)

III.

ANALYSIS

Plaintiff petitions to

vacate the Arbitration Award, based on the following main points:

1.

The untimely Opposition in arbitration was excusably caused by the handling attorney's broken hip, the supervising attorney's eyesight condition, the calendar clerk's maternity leave, and a paralegal's not having JAMS Access to Arbitrator communications.

2.

The Arbitrator clearly erred by:

a. Denying

Plaintiff's request to reopen proceedings and accept the untimely opposition. (Petition, Exhibit K.)

b. Applying

a separate arbitration Statute of Limitations unstated in law and the arbitration agreement (Code Civ. Proc., § 1281.12.), whereas the Complaint was timely filed within one year of the administrative Right-to-Sue letter.

c. Depriving

Plaintiff of a determination on the merits of an unwaivable legal right. (Pearson Dental Supplies, Inc. v. Superior Court (2010) 48 Cal.4th 665.)

d. Issuing

the Award before the scheduled motion hearing date.

Defendant counterargues the following positions:

1.

Where the Arbitration Agreement was interpreted to incorporate the statutes of limitations, Plaintiff failed to submit claims to arbitration by the deadline,

as tolled by Section 1281.12. Alternatively, advisory law has held that the agreement need not address an arbitration Statute of Limitations. (Response, 12:23-14:19.)

2.

Section 3 of

the Arbitration Agreement provides for the arbitrator's authority to determine the Statute of Limitations, as follows: The arbitrator is authorized to award any remedy or relief available under applicable law that the arbitrator deems just and equitable, including any remedy or relief that would have been available to the parties had the matter been heard in court." (Response, 12:12.)

3. The Arbitrator's interpretation of the contract is not subject to judicial review.

4.

The arbitration

time limitation (not to be confused with the case limitations), expired on July 20, 2024, but Plaintiff waited until November 20, 2025, to initiate arbitration.

5.

The

Arbitrator's office contacted Plaintiff's counsel twice to remind about an Opposition untimely submitted.

6.

There was no

refusal to hear any evidence involved in the JOP procedure.

7.

Like judges,

arbitrators can disregard untimely oppositions.

8.

Unlike with

judges, excusable neglect in untimely opposing is not any statutory basis for vacating an arbitration award.

9.

Leave to

amend the Complaint would have been futile, where there are no allegations to add that could make arbitration timely initiated.

Arbitrators' clear legal errors are judicially reviewable if they prevented plaintiffs from having a hearing on the merits of an unwaivable, important statutory right, like a FEHA claim. (*Castelo v. Xceed Fin. Credit Union* (2023) 91 Cal.App.5th 777, 788.) In the cited *Pearson* case, the arbitration agreement required submitting to arbitration within one year of the date the dispute arose. (*Pearson Dental Supplies, Inc. v. Superior Court* (Pearson) (2010) 48 Cal.4th 665, 673.) "[W]hen ... an employee subject to a mandatory employment-arbitration agreement is unable to obtain a hearing on the merits of his FEHA claims, or claims based on other unwaivable statutory rights, because of an arbitration award based on legal error, the trial court does not err in vacating the award." (*Ibid.* at p. 680.) "Apart from cases like *Pearson* ..., the vacatur grounds listed in section 1286.2, subdivision (a) are controlling. (*Comerica Bank v. Howsam* (2012) 208 Cal.App.4th 790, 824.)

Here, while Plaintiff's Complaint is expressly based upon unwaivable FEHA rights, the question remains whether the Arbitrator committed all clear legal errors. And the arbitrator made multiple determinations preventing a determination on the merits, beyond just the Statute of Limitations.

First, this Court finds that it was not clear legal error for the Arbitrator to decline to reopen proceedings to consider a week-late opposition submitted after the Final Award was issued, even considering the reasons of excusable neglect that judges would consider. "The statutory grounds authorize the arbitrator to correct an award after it has been issued to the parties only regarding 'evident miscalculations of figures or descriptions of persons, things or property [citation] and nonsubstantive matters of form that do not affect the merits of the controversy.'" (*Cooper v. Lavelly & Singer Pro. Corp.* (2014) 230 Cal.App.4th 1, 14.) (Underscoring added.) And "subdivision (a)(5) of section 1286.2 does not oblige the arbitrator to 'reopen' the presentation of evidence to consider new evidence." (*Ibid.*, p. 20, fn. 8.) Instead, " '[t]he arbitrator ... must give each of the parties to the dispute an adequate opportunity to present its evidence and arguments.' " (*Maaso v. Signer* (2012) 203 Cal.App.4th 362, 373.) (Underscoring added.)

Second, there was no clear legal error for the Arbitrator to decline to

consider evidence, where the Motion for Judgment on the Pleadings (JOP) did not involve proof, but a summarily dispositive motion based upon allegations. Vacation of an award for refusal of arbitrators to hear evidence must rest on more than error in applying the rules of evidence and be an abuse of discretion. (*Valencia v. Mendoza* (2024) 103 Cal.App.5th 427, 447, fns. 19-20.) Arbitrators' rulings on a question of law that could be resolved without evidence is not a basis to vacate an award. (*Schlessinger v. Rosenfeld, Meyer & Susman* (1995) 40 Cal.App.4th 1096, 1111.) "Presentation of extrinsic evidence is ... not proper on a motion for judgment on the pleadings." (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.)

Third, the Arbitrator did not clearly err in interpreting the agreement to impliedly include a time limitation for demanding arbitration. Courts may vacate arbitration awards interpreting contracts only if they rest on a completely irrational construction or amount to arbitrary remaking of contracts. (*California Dept. of Human Resources v. Service Employees Intern. Union, Local 1000* (2012) 209 Cal.App.4th 1420, 1430.) An arbitrator's remedy must be rationally drawn from the contract as interpreted, without courts reviewing the interpretation. (*Advanced Micro Devices, Inc. v. Intel Corp.* (1994) 9 Cal.4th 362, 377.)

Fourth, denying leave to amend the Complaint was not clear legal error, where the bar of the Statute of Limitations involved analyzing the applicable dates that Plaintiff does not dispute in relying upon inapplicability of any arbitration submission deadline. (See Petition, third unnumbered page.) Where the Statute of Limitations has clearly run, there is no reason to waste time and effort on arbitrating the merits of the claim. (*Schlessinger v. Rosenfeld, Meyer & Susman* (1995) 40 Cal.App.4th 1096, 1109. See also generally, Cal. Prac. Guide: Civ. Pro. Before Trial, § 5:393.3 [available on Westlaw].) Analogously, " 'where the nature of the plaintiff's claim is clear, and under substantive law no liability exists, a court should deny leave to amend because no amendment could change the result.' " (*San Mateo Union High Sch. Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 441.)

IV.

CONCLUSION

Accordingly, the Court denies the Petition, for reasons set forth herein.